

Present :
Mr. Justice Md. Jahangir Hossain
And
Mr. Justice Ashish Ranjan Das.

Criminal Misc.No.1936 of 1999

In the matter of:

Mrs. Jahanara Begum

..... Petitioner

-Versus-

The State

..... Opposite party.

No one appears

.....For the accused- petitioner.

Mr. S.M. Golam Mostafa, D.A.G.

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... For the State

Heard on: 18.01.2021

Judgment on: 03.02.2021

Ashish Ranjan Das, J:

Under section 561-A of the Code of Criminal Procedure (for short the Code) at the instance of the convict petitioner Mosammat Jahanara Begum was issued on 19.04.1999 in the following terms:-

“Let the records be called for and a rule issue calling upon the Deputy Commissioner, Jessore to show cause as to why the judgment and order dated 29.04.1997 passed by the Nari-O-Shishu Nirjatan Bishes Daman Adalat, Jessore in Special Tribunal Case No. 356/93 should not be quashed or such other or further order or orders passed as to this court may seem fit and proper.

However, none appeared to press this rule, although the matter

has been occurring in the daily cause list over the period with the name of the advocate.

We have gone through the materials annexed to the file and heard objections raised by the learned Deputy Attorney General.

Short facts relevant for the purpose that could be gathered from the file may be summarized as under:- one Abul Kashem used to be faith known to the informant Surat Ali dafadar and inhabitant of Jessore police station. Kasehm brought a young man and introduced him as a good boy and proposed to give the informant's daughter Fatema Khatun aged about 18 years to give him marriage with Salim. The informant agreed and in presence of local U. P. Chairman Nazimuddin, a formal marriage according to Islamia Saria was solemnized and Kabin nama was registered on 15.07.1999. Next day on 16.07.1999 Salim and Kashem left the informant's home with newly marriage Fatema. But in fact, Kasem and Salim took Fatema to Monihar Bus stand located at Jessore town.

This petitioner accused Jahanara Begum appeared there and Salim introduced her as his sister and asked Fatema to go with Jahanara and promised that he would follow to Jahanara a time after but Jahanara used to be a beteram 6 worker working at Barisanta under Mongla police station. Jahanara the petitioner took Fatema to Barisanta across the river Rupsa, Khulna. Upon suspicion and

secrete information the police of Rupsa police station district Khulna recovered both Faterma and Jahanara and brought them to the Rupsa police station, Getting then information the informant rushed there and stating above. The informant Surat Ali Dafadar lodged an FIR with the Rupsa police station attracting section 4-Ka of the prevailing law, the Cruelty to Woman (Deterrent Punishment) Ordinance of 1983.

After investigation charge sheet was submitted attracting the above section of law and finding the allegation primarily proved. However, the case was subsequently transferred to Jessore police station and cognizance of the case being Special Tribunal Case No.356 of 1993 attracting section 4Ka of the said Act. Taking into cognizance the Tribunal examined as many as 10 witnesses and by judgment dated 29.04.1997 all the 3 accused including this petitioner Jahanara alias Jana, Salim alias Siddiq and Kashem were found guilty and each of them were sentenced to suffer imprisonment for life, however accused Salim and Kashem were absconding.

The petitioner Jahanara Begum could not prefer an appeal within the stipulated time hence she brought this application for quashment of judgment of conviction and sentence under section 561-A of the Code of Criminal Procedure. The allegation unapt, during investigation is that both accused Kashem and Salim were

culprit. Salim was actually Siddiq and Kashem introduced him with a fake identity for some purpose while petitioner Jahanara a sex worker of Banisanta used to be closed to Kashem and Salim and her plan manner Jahanara travelled to town and took delivery of illiterate rural girl Fatema introducing herself as the full sister and sister of Salim. It remains un denied that both the victim girl Fatema and Jahanara were recovered by the police of Rupsaa police station from a bête- ram of Barisanta, police station, Mongla. In a proceeding where this application Jahanara this petitioner did not deny the fact that she used to be a sex worker at Banisanta. In this application as grounds that the witnesses were discrepant or that Jahanara was not present there when the marriage between Fatema and Salim was solemnized.

But this has been a settled principle is deciding an issue of quashment that a judgment of conviction may be quashed if the same is based on no legal evidence but not on discrepant evidence. Now this case and strong circumstantial aspect as the learned tribunal took into observation is that it remained un denied that this petitioner Jahanara used to be a Veteran sexual worker at Banisanta under police station Mongla, district Khulna . It has proved in evidence that Jahanara took Fatema to the Beetle of Rupsa and it was therefore under a special order upon Jahanara to prove that she did not do so or that she has some on it purpose. It

remains un-denied that police of Rupsa police station such an recovered Jahanara and Fatema from the beetle and brought them to Rupsa police station. Thus, in our view this convict petitioner could not put forwards any reasonable explanation, on the other hand the charge was proved from both oral and circumstantial evidence.

The petitioner ought to have file a criminal appeal against the judgment of conviction and sentence which she did not within the specified time and erred in law, this has not been a such option for a convict to prefer an application under section 561-A of the Code of Criminal Procedure keeping the provision of preferring an appeal.

On a meticulous study and appreciation of the facts evidences and circumstances both of us hold that the petitioner's case was short of merit. Accordingly the rule is discharged.

The convict petitioner Jahanara Begum alias Jana Bibi is directed to surrender before the trial court, Nari-O-Shishu Nirjatan Daman Tribunal, Jessore in order to serve out the remaining part of the sentence, if may be, within 30 days from the date of receipt of a copy of this judgment by the Tribunal.

The order of stay granted earlier is hereby recalled and vacated.

Communicate the judgment and Order to the court below at once.

Send down the L.C. R.

Justice Ashish Ranjan Das

I agree.

Justice Md. Jahangir Hossain

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